

BEFORE THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS AND THE STATE
BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2018-6151 & 2018-6153

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE CERTIFICATE TO
PRACTICE ADDICTION COUNSELING IN THE STATE OF COLORADO AND THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF SCOTT ABER,
CERTIFICATE NO. ACC 6669, LICENSE NO. LPC 5081,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Addiction
Counselor Examiners and the State Board of Licensed Professional Counselors
(together, "Boards") and Scott Aber ("Respondent") as follows:

1. The Boards have jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was certified to practice as a Certified Addiction Counselor III ("CAC III") and licensed to practice as a Professional Counselor ("LPC") the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of case numbers 2018-6151 and 2018-6153. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or around June 13, 2016, Respondent entered into a Stipulation and Final Agency Order with the Boards in case numbers 2014-3809 and 2014-3810 ("2016 Order") and agreed to probation with practice monitoring for three (3) years, 30 continuing education hours in ethics, clinical training, billing, dual relationships, and recordkeeping, and comply with all provisions of the Practice Act and all rules and regulations of the Boards. The 2016 Order was based on the following:
 - i. Beginning on or around July 2014, Respondent provided couples counseling to KB and RB.

- ii. Respondent diagnosed KB without utilizing proper assessment tools.
- iii. Respondent advised KB to increase her prescription medication.
- iv. Respondent's treatment notes were incomplete, brief, lacked detail and treatment plans, and failed to include the use of any assessment tools.
- v. Respondent's billing records were substandard in that Respondent double billed KB on two occasions and billed insurance for incorrect treatment dates, once for KB and once for RB.
- vi. Respondent involved RB in this case by seeking a recommendation letter on Respondent's behalf.

b. On April 20, 2018, Respondent entered into a Stipulation and Final Agency Order with the Boards in case numbers 2017-4343 and 2017-4369 ("2018 Order") that includes the terms as outlined above with the addition of a practice restriction regarding supervision due to Respondent failing to maintain boundaries with his supervisee.

c. Beginning on or around May 2018, Respondent fraudulently billed for multiple sessions with CK that did not occur.

d. Respondent's treatment notes for CK were incomplete, brief, lacked detail and treatment plans, and failed to include the use of any assessment tools.

e. Respondent violated the 2016 and 2018 Orders by engaging in additional prohibited activities in the Practice Act.

f. This Order supersedes the 2016 and 2018 Orders and also includes case numbers 2018-6151 and 2018-6153.

g. On or around December 11, 2018, Respondent notified the Boards that he closed his practice in August 2018 and relocated outside of Colorado.

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Boards find that Respondent violated section 12-43-222(1)(b), (g)(l), (h), (i), and (u), which state:

12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 43 violates this article 43 if he or she:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article;

(g)(l) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline;

(h) Has performed services outside of such person's area of training, experience, or competence;

(i) Has maintained relationships with clients that are likely to impair such person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives;

(u) Has falsified or repeatedly made incorrect essential entries or repeatedly failed to make essential entries on patient records.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Boards believe is necessary to protect the public health, safety, and welfare.

RELINQUISHMENT

7. Respondent hereby relinquishes his CAC III certificate and the right to practice as an addiction counselor in the State of Colorado and relinquishes his LPC license and the right to practice as a professional counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Boards accept such relinquishments. Such relinquishments shall have the same force and effect as revocations ordered by the Boards, including the provisions of section 12-43-224(3)(a)(II), C.R.S.

8. Following relinquishment of his CAC III certificate and his LPC license, Respondent shall not perform any act requiring a certificate or license to practice.

9. Respondent understands that if he applies for certification or licensure as an addiction counselor or professional counselor at any future time, Respondent will be required to comply with all criteria for initial certification or licensure that exists at the time of application(s).

10. Respondent also agrees not to register as a psychotherapist in the State of Colorado or perform any act constituting psychotherapy as defined under section 12-43-201(9), C.R.S.

TERMS AND CONDITIONS

11. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to section 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

12. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

13. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

14. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

15. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

16. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

17. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

18. This Order shall be admissible as evidence at any hearing held before the Boards.

19. This Order shall be a public record in the custody of the Boards.

AGREED TO AND ACCEPTED BY:

RESPONDENT



SCOTT ABER
ACC 6669
LPC 5081

AGREED TO AND ORDERED BY:

STATE BOARD OF ADDICTION COUNSELOR
EXAMINERS AND STATE BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS



ARIANA BUSBY
Program Director

Effective this 18th day of June,
2019.